
Engineer's Determination — Extension of Time (EOT-01), Pier P3 Utility Conflict

Nandira River Bridge Project — Package NRB-4

Document Reference:	ENG-NRB4-0019
Date:	25-Sep-2021
Contract No.:	NHIA/NRB4/CW/2020-01
From:	Engineer, Meridian Engineering Consultants
To:	Contractor, Sagara Constructions Pvt. Ltd.

Subject: Determination — EOT-01 — Extension of Time Claim, Pier P3 Utility Conflict (Notice CTR-NRB4-0021)

We refer to your Notice CTR-NRB4-0021 dated 10-Feb-2021 and detailed particulars CTR-NRB4-0028 dated 24-Mar-2021, claiming an extension of the Time for Completion arising from the unforeseen utility structure encountered at Pier P3 on 28-Jan-2021.

Having reviewed the particulars submitted, Site Instruction SI-NRB4-014, and the confirmation from Vantara Power Grid Corporation (VPGC-NRB4-0012 and VPGC-NRB4-0045) that relocation works, once commenced, extended to approximately 22 weeks against a 14-week estimate, we make the following determination under Sub-Clause 8.4:

1. **ENTITLEMENT:** The event is accepted as falling within Sub-Clause 8.4(c). The utility structure was not shown on the Drawings or Utility Drawings provided with the tender documents, and its presence within the Pier P3 footprint could not reasonably have been foreseen by the Contractor at the date of the Letter of Acceptance.
2. **ASSESSMENT OF DELAY:** Although the affected area remained unavailable for approximately 32 weeks in total (28-Jan-2021 to 10-Sep-2021), the resequencing instructed under SI-NRB4-014 allowed the Contractor to maintain progress at Piers P1, P2, P4 and P5 for the greater part of this period without corresponding loss to the overall programme. Based on our review of the Contractor's updated programme and critical path analysis, we assess the net critical path delay to Substantial Completion attributable to this event at 10 weeks.
3. **DETERMINATION:** An extension of the Time for Completion of 10 weeks is hereby granted under Sub-Clause 8.4, revising the Time for Completion accordingly. This extension relates solely to the Pier P3 utility conflict addressed in this determination.

This determination does not address, and is without prejudice to, any other notice or claim the Contractor may have submitted or may submit in respect of any other event or circumstance.

Signed: Engineer's Representative
Meridian Engineering Consultants